Master Services Agreement

This Master Services Agreement (this **"Agreement"**) is entered into as of February 1, 2024 (the **"Effective Date"**) by and between Arcadia Retail Inc., a corporation with its headquarters in the United States (**"Arcadia"**), and Ironbridge Data Centers Inc (**"Ironbridge"**). Arcadia and Ironbridge are each a **"Party"** and together the **"Parties."**

ARTICLE 1 – DEFINITIONS

1.1 **"Affiliate"** means any entity that controls, is controlled by, or is under common control with a Party.

1.2 **"Confidential Information"** means all non-public information disclosed by or on behalf of a Party (the **"Discloser"**) to the other Party (the **"Recipient"**) in connection with this Agreement that is marked confidential or that a reasonable person would understand to be confidential, including pricing, business plans, system architecture and security information.

1.3 **"Fees"** means the fees payable by Arcadia for the Services as set out in Article 4.

1.4 **"Security Incident"** means any actual or reasonably suspected unauthorized access to, or loss, disclosure or compromise of, Arcadia's systems, equipment or data hosted or managed by Ironbridge in connection with the Services.

1.5 **"Services"** means the data center hosting, colocation, infrastructure and related services described in this Agreement and in any Statement of Work signed by both Parties.

1.6 **"Term"** has the meaning given in Section 3.1.

ARTICLE 2 – SERVICES

2.1 **Provision of Services.** Ironbridge shall provide the Services to Arcadia in accordance with this Agreement, using qualified personnel and in a professional and workmanlike manner.

2.2 **Statements of Work.** Specific deliverables, locations and responsibilities may be documented in one or more Statements of Work. Each Statement of Work is governed by this Agreement. If there is a conflict, this Agreement prevails unless the Statement of Work expressly identifies the provision of this Agreement it overrides.

2.3 **Service Levels.** Ironbridge shall make the Services available at least 99.99% of the time in each calendar month. Ironbridge shall notify Arcadia of any Security Incident within twelve (12) hours of becoming aware of it, and shall provide reasonable information and cooperation to support investigation and remediation.

2.4 **Service Level Failure.** If Ironbridge fails to meet the availability level in Section 2.3 in any month, Ironbridge shall promptly investigate, deliver a written root-cause analysis and implement corrective measures. Any service credits agreed in a Statement of Work are in addition to Arcadia's rights under Article 10.

2.5 **Customer Responsibilities.** Arcadia shall provide timely access, information and approvals reasonably required for Ironbridge to perform the Services.

ARTICLE 3 – TERM AND RENEWAL

3.1 **Initial Term.** This Agreement commences on the Effective Date and continues until February 1, 2027, a period of thirty-six (36) months (the **"Initial Term"**, and together with any extension agreed under Section 3.2, the **"Term"**), unless terminated earlier in accordance with Article 10.

3.2 **No Automatic Renewal.** This Agreement does not renew automatically. Any extension of the Term requires a written agreement signed by authorized representatives of both Parties.

3.3 **No Termination for Convenience.** Neither Party may terminate this Agreement for convenience. This Agreement may be terminated only for cause in accordance with Article 10.

ARTICLE 4 – FEES AND PAYMENT

4.1 **Annual Fees.** Arcadia shall pay Ironbridge annual Fees of USD 1,800,000. The total contract value over the Initial Term is USD 5,400,000.

4.2 **Invoicing.** Ironbridge shall issue valid invoices to Arcadia, each stating the Services and period covered, the amount due and any purchase order reference supplied by Arcadia.

4.3 **Payment Terms.** Arcadia shall pay undisputed amounts within forty-five (45) days of receipt of a valid invoice.

4.4 **Disputed Amounts.** Arcadia may withhold amounts it disputes in good faith by notifying Ironbridge in writing with reasonable detail. The Parties shall work promptly to resolve the dispute, and Ironbridge shall continue to perform the Services during any dispute.

4.5 **Taxes.** Fees are exclusive of applicable sales, use and similar taxes, which shall be separately stated on the invoice and paid by Arcadia, excluding taxes based on Ironbridge's income, property or employees.

ARTICLE 5 – CONFIDENTIALITY

5.1 **Obligations.** The Recipient shall (a) use the Discloser's Confidential Information only to perform or receive the Services and exercise its rights under this Agreement; (b) not disclose it to any third party except to its Affiliates, employees, contractors and advisors who need to know it and are bound by confidentiality obligations no less protective than this Article; and (c) protect it with at least reasonable care.

5.2 **Exclusions.** Confidential Information does not include information that the Recipient can show (a) is or becomes public other than through breach of this Agreement; (b) was lawfully known to it before disclosure; (c) is lawfully received from a third party without restriction; or (d) is independently developed without use of the Discloser's Confidential Information.

5.3 **Compelled Disclosure.** The Recipient may disclose Confidential Information to the extent required by law or court order, provided it gives the Discloser prompt notice (where lawful) and reasonable cooperation to seek protective treatment.

5.4 **Survival.** The obligations in this Article 5 survive for three (3) years after this Agreement ends.

ARTICLE 6 – INTELLECTUAL PROPERTY

6.1 **Pre-Existing Materials.** Each Party retains all right, title and interest in its pre-existing intellectual property and that developed independently of this Agreement.

6.2 **Arcadia Materials.** Arcadia retains all rights in its data, content, software and systems made available to Ironbridge. Arcadia grants Ironbridge a limited, non-exclusive, non-transferable license during the Term to use them solely to provide the Services.

6.3 **Deliverables.** Unless a Statement of Work states otherwise, Arcadia owns all deliverables created specifically for Arcadia under this Agreement, excluding Ironbridge's pre-existing materials, for which Ironbridge grants Arcadia a non-exclusive, perpetual, royalty-free license to use as incorporated in the deliverables.

ARTICLE 7 – WARRANTIES

7.1 **Services Warranty.** Ironbridge warrants that the Services will be performed with due skill and care, in accordance with this Agreement and applicable law, and by suitably qualified personnel.

7.2 **Mutual Warranties.** Each Party warrants that it has full authority to enter into and perform this Agreement and that doing so does not breach any other agreement binding on it.

7.3 **No Express Warranty Period.** This Agreement provides no express warranty period; the only warranty given in respect of the Services is the services warranty in Section 7.1.

7.4 **Disclaimer.** Except as expressly stated in this Agreement, neither Party makes any other warranty, and all implied warranties are disclaimed to the fullest extent permitted by law.

ARTICLE 8 – INDEMNIFICATION

8.1 **By Ironbridge.** Ironbridge shall defend, indemnify and hold harmless Arcadia and its Affiliates from and against third-party claims, and resulting losses, damages and reasonable costs, arising from (a) allegations that the Services infringe a third party's intellectual property rights, or (b) bodily injury, death or damage to tangible property caused by the negligence or willful misconduct of Ironbridge or its personnel.

8.2 **By Arcadia.** Arcadia shall defend, indemnify and hold harmless Ironbridge from third-party claims, and resulting losses, damages and reasonable costs, arising from allegations that Arcadia's data or materials, as provided to Ironbridge, infringe a third party's rights or violate applicable law.

8.3 **Procedure.** The indemnified Party shall give prompt written notice of the claim, allow the indemnifying Party sole control of the defense and settlement (provided no settlement imposes liability on the indemnified Party without its consent, not to be unreasonably withheld), and provide reasonable cooperation at the indemnifying Party's expense.

ARTICLE 9 – LIMITATION OF LIABILITY AND INSURANCE

9.1 **Cap.** Subject to Section 9.3, each Party's aggregate liability arising out of or relating to this Agreement is limited to one (1) times the Fees paid or payable in the twelve (12) months preceding the claim.

9.2 **Exclusion of Indirect Loss.** Subject to Section 9.3, neither Party is liable for indirect, incidental, consequential, special or punitive damages, or for lost profits, arising out of this Agreement, even if advised of their possibility.

9.3 **Exceptions.** Nothing in this Agreement limits liability for fraud, gross negligence, willful misconduct, or any liability that cannot be limited under applicable law.

9.4 **Insurance.** Ironbridge shall maintain throughout the Term, with reputable insurers, insurance cover of at least USD 5,000,000 per claim, and shall provide evidence of coverage on Arcadia's reasonable request.

ARTICLE 10 – TERMINATION

10.1 **Termination for Cause.** Either Party may terminate this Agreement by written notice if the other Party (a) materially breaches this Agreement and fails to cure the breach within thirty (30) days after written notice describing it; or (b) becomes insolvent, makes an assignment for the benefit of creditors, or becomes subject to bankruptcy or similar proceedings that are not dismissed within a reasonable period.

10.2 **No Other Termination Right.** Except as stated in Section 10.1, neither Party may terminate this Agreement before the end of the Initial Term, consistent with Section 3.3.

10.3 **Effect of Termination.** On expiry or termination, Ironbridge shall cooperate reasonably in orderly transition and return of Arcadia's equipment and data, and Arcadia shall pay undisputed Fees for Services performed through the termination date.

10.4 **Survival.** Articles 5, 6, 8, 9, 11 and 12 and any other provisions intended by their nature to survive shall survive expiry or termination.

ARTICLE 11 – DATA PROTECTION AND SECURITY

11.1 **No Personal Data.** The Parties acknowledge that the Services do not involve the processing of personal data. Ironbridge shall not access, collect or process personal data on Arcadia's behalf under this Agreement.

11.2 **Change in Scope.** If the Parties later agree to Services involving personal data, they shall first enter into a written agreement addressing the applicable data protection requirements.

11.3 **Security.** Ironbridge shall maintain physical, technical and organizational safeguards appropriate to a professionally operated data center to protect Arcadia's systems and data, and shall comply with Section 2.3 in respect of Security Incidents.

ARTICLE 12 – GENERAL PROVISIONS

12.1 **Governing Law.** This Agreement is governed by the laws of Virginia, without regard to its conflict-of-laws principles.

12.2 **Dispute Resolution.** The Parties shall first attempt in good faith to resolve any dispute through escalation to senior executives. Failing resolution, either Party may bring proceedings in the state or federal courts located in Virginia, to whose jurisdiction each Party submits.

12.3 **Assignment.** Neither Party may assign or transfer this Agreement without the prior written consent of the other, not to be unreasonably withheld, except that either Party may assign it to a successor in a merger or sale of all or substantially all of its relevant business upon written notice.

12.4 **Notices.** Notices must be in writing and delivered by hand, nationally recognized courier or registered mail to the address of the receiving Party stated in the applicable Statement of Work or otherwise notified in writing, and are effective on receipt.

12.5 **Force Majeure.** Neither Party is liable for delay or failure caused by events beyond its reasonable control, provided it notifies the other promptly and uses reasonable efforts to resume performance. This Section does not excuse Ironbridge's obligations to maintain reasonable business continuity measures.

12.6 **Independent Contractors.** The Parties are independent contractors. Nothing in this Agreement creates a partnership, joint venture, agency or employment relationship.

12.7 **Entire Agreement.** This Agreement, with its Statements of Work, is the entire agreement between the Parties on its subject matter and supersedes all prior discussions and agreements. It may be amended only in writing signed by both Parties.

12.8 **Severability and Waiver.** If any provision is held unenforceable, the remainder continues in effect. A failure to enforce any right is not a waiver of it.

12.9 **Counterparts.** This Agreement may be executed in counterparts, including by electronic signature, each of which is an original and all of which constitute one instrument.

SIGNATURES

The Parties have caused this Agreement to be executed by their authorized representatives.

	Arcadia Retail Inc.	**Ironbridge Data Centers Inc**
Signature	_____	_____
Name	Helena Cruz	Anika Rao
Title	VP Technology Sourcing	Authorised Signatory

	Arcadia Retail Inc.	Ironbridge Data Centers Inc
Date	January 22, 2024	January 25, 2024